

complaint

Mr M complains about how Liverpool Victoria Insurance Company Limited ("LV") has dealt with his claim for storm damage to his roof.

background

Mr M's property is in a particularly exposed location. He has made a number of claims for storm damage to his roof. In 2016 he asked LV to pay for repairs to the latest damage. LV agreed, and paid a little over £5,000. But then Mr M said that there was much more damage, and he would need to do much more extensive repairs. LV said it wouldn't pay for that.

LV sent an inspector out to view the roof. She did find some storm damage. But her report also mentions other, quite significant, problems with the roof, that wouldn't be attributed to storm. She said that the lead to the valleys was of an inferior quality, and that the missing and damaged tiles looked like damage caused by workmen, not a storm. She also said that the ridge mortar was crumbling, but this happens over time, not because of a storm. And finally she said that she thought the purlins (horizontal beams running along the length of the roof) were too far apart, which was putting too much stress on the tiles.

Mr M sent a report from a roofer. That report says that there are sections of sagging to existing tile. The roofer said that those problems were caused by storm damage which had dislodged tiles and let water in, which in turn caused the problems with the timbers of the roof. That roofer supplied a quote which was for repairs to the front, side and rear of the property. It included removing tiles, felt and battens, and replacing the felt and battens on portions of the rear, side and front of the house, and redoing the mortar on the ridge tiles. This new quote was for a little over £21,000.

LV said that this wasn't damage caused by the 2016 storm, so it wasn't going to pay for it. Mr M had claimed several times in the last few years for damage to his roof. He'd claimed in 2012, 2013, 2014, and twice in 2015. LV had turned down the second claim in 2015, but had paid cash settlements for all the other claims. LV wanted Mr M to show it that he'd had the work done in each of those cases. It said that he'd only sent it an invoice for the work in 2012, and it had some concerns about that. And LV said it wouldn't be renewing Mr M's insurance.

Mr M said that LV was lying about that, he'd sent it all the proof that the work had been paid for. And he said he would send us evidence to prove LV was lying. He hasn't done that.

Our investigator didn't uphold this complaint. He said that LV had paid to repair the damage caused by the storm, the rest of the problems were wear and tear, and bad workmanship. LV had shown it didn't have to pay for those. So our investigator said that he didn't think LV had done anything wrong when it decided not to pay Mr M's much larger quote for repairs. And LV can choose who it wants to insure, so our investigator didn't think LV had done anything wrong when it told Mr M it wouldn't renew his insurance.

Mr M said he would get an engineer's report on the roof. That report said that the roof was relatively recently built, and that there was nothing wrong with the spacing of the purlins. It also said that the roof had been designed and built by reputable firms, and the project had received a quality award. This report said that leaks through the roof were likely to be as a result of storm damage, not due to structural deficiencies with the roof itself. This report doesn't explain which areas of the roof are leaking, or how long the problems have been

going on for, and it doesn't make any comment about what repairs are needed to the roof. Mr M said he could get a structural engineer's report too, if that would help.

Mr M said that he wanted an ombudsman to consider his complaint, so the case was passed to me for a final decision.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. I've reached the same conclusion as our investigator.

Mr M has provided evidence that his roof has been damaged by storms. But he hasn't offered any evidence that shows that the storm damage is recent. And LV points out that Mr M has been paid for a number of claims for storm damage to his roof over the last few years. LV says it has asked Mr M to provide evidence that those repairs were done, and he hasn't done that. In these circumstances I do think it is important that Mr M shows that he had the previous repairs that LV has paid for, done. If he didn't have those repairs done, and that earlier storm damage has just got worse, then I wouldn't ask LV to pay to repair that further damage.

Mr M said he had sent this evidence to LV. He said that LV was lying about that, and he could prove it. But he hasn't sent us any evidence that shows me that LV is lying. So I think it is more likely than not that Mr M has not sent the invoices for work done in 2013, 2014 and 2015 to LV.

It's for Mr M to establish that he has a valid claim in the first instance. And although he has offered evidence that there is damage to his roof caused by storms, he hasn't been able to establish that the damage he now wants LV to pay for is as a result of the most recent storm, in 2016, and not a result of earlier storm damage which LV paid for but he didn't repair. In those circumstances, I don't think LV has to pay this claim.

I know Mr M will be disappointed, but I don't uphold this claim.

my final decision

I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr M to accept or reject my decision before 21 July 2017.

Esther Absalom-Gough
ombudsman